

Calendar Lines 3-4

Case Name: *Debra Ryan et al. v. AAA et al.*

Case No.: 23CV427933

The present motions were originally calendared for a hearing on January 7, 2025. On the eve of that date, after the court had already posted a tentative ruling on these motions, the parties submitted a stipulation to continue the hearing, indicating that they were continuing to meet and confer in an effort to “narrow” or “eliminate” their disputes. The court therefore rescheduled the hearing to February 27, 2025, noting that if plaintiffs ultimately elected to take the motions off calendar, “they should notify the court at least three court days before the rescheduled hearing date.” (January 6, 2025 Order, p. 3.) The court has not received any update from the parties, as of February 25, 2025. Accordingly, the court hereby adopts in full its previous tentative ruling, which stated the following:

Plaintiffs Debra and Richard Ryan (“Plaintiffs”) have filed two motions to compel further discovery responses from defendant CSAA Insurance Exchange (“CSAA”): the first pertains to requests for production of documents; the second pertains to special interrogatories. After Plaintiffs filed this motion, CSAA supplemented its responses to both sets of requests, but neither side has addressed these supplemental responses in their separate statements under rule 3.1345 of the California Rules of Court. On this basis alone, the motions must be denied.

The separate statement is not a mere technicality—its purpose is to “provide[] all the information necessary to understand each discovery request and all the responses to it that are at issue.” (Cal. Rules of Court, rule 3.1345(c).) Rule 3.1345(c) goes on to emphasize that: “[t]he separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” If Plaintiffs wished to have the court consider the propriety of CSAA’s supplemental discovery responses, it was incumbent on them to submit a supplemental separate statement that provides a “full and complete” record of the disputed issues. Plaintiffs’ filings fail this basic requirement.⁹

If this motion were focused on just a few requests, then it might be possible for the court to overlook this problem, but instead, plaintiffs have filed scattershot motions that take issue with the responses to all 20 of its document requests and 10 out of 11 of its special interrogatories. This is not a proper use of motion practice.

Finally, even if the court were to consider the motions on the merits, the court has reviewed the supplemental discovery responses (attached to the two opposing declarations of CSAA’s counsel) and finds that they are generally code compliant:

⁹ In reply, Plaintiffs’ counsel has submitted a declaration that purports to attach updated information (see Supplemental Declaration of Heather Gibson, dated December 30, 2024), but no documents are actually attached to this filing. None of the cited exhibits are before the court.

Requests for production: The court finds that CSAA’s supplemental responses to the requests for production cure any material deficiencies that existed in the original responses. Plaintiffs take issue with the “Preliminary Statement” contained in CSAA’s original responses, as well as “all previously stated objections,” arguing that this statement and all of these objections must be “stricken.” This misunderstands the purpose of a motion to compel further responses, as well as the purpose of discovery generally. A motion to compel further responses is not a motion to strike. The court’s sole concern on a motion to compel *further responses* is whether a responding party has provided adequate information in response to each discovery request, or whether it has withheld material information on the basis of an improper objection. In this case, Plaintiffs fail to identify any information that may have been withheld on the basis of the “Preliminary Statement” or “previously stated objections.”

Even for those responses that use open-ended language such as “included” or “including,” or that refer back to the insurance “claim file,” Plaintiffs fail to identify any information that may actually be missing from the responses, much less any information that may be missing from CSAA’s document production.

As for Requests Nos. 18-20, the court finds Plaintiffs’ contention that CSAA must somehow have possession, custody, or control of certain individuals’ CVs or resumes to be speculative. There are other proper ways to obtain this discovery.

Finally, the court observes that many of the requests for production—particularly those that are not restricted in scope to the insurance claim at issue (e.g., No. 1: “All written emails, texts, or communication relating to you and the Greenspan Company.”)—to be exceedingly overbroad.

Special Interrogatories: The court likewise finds that while CSAA’s original responses to Interrogatories Nos. 2-11 were lacking and insufficiently responsive, the supplemental responses cure these deficiencies by identifying the appropriate individuals. Taken together, the original and supplemental responses are code-compliant. The court rejects Plaintiffs’ argument that the court “must strike” the “Preliminary Statement and “previously stated objections,” for the same reason noted above with respect to the document requests.

Privilege log: Finally, the court has reviewed CSAA’s privilege log and finds that it appears to contain the necessary information to establish the existence of an attorney-client privilege in the relevant communications, although the court does not understand why the “Author” on six entries is listed as “System.” To the extent that there is any ambiguity in what this means (these appear to be redactions, and the court does not have copies of the documents to view these redactions in context), then the privilege log may need to be supplemented to address this. The court leaves this issue to the parties to sort out.

In summary, the court DENIES the motions to compel, with the possible exception of the “Author” field on the privilege log. The court also DENIES Plaintiffs’ request for monetary sanctions.

IT IS SO ORDERED.

- oo0oo -

Calendar Line 6**Case Name:** *Tolentino R. Aspiras et al. v. Roger Delos Reyes et al.***Case No.:** 23CV423644

This is a partition action in which plaintiffs and defendants each hold a 50% interest in property (29 Jason Drive, Milpitas, California) that has now been sold, and as to which the remaining proceeds amount to \$1,084,437.62. Plaintiffs have filed a motion seeking a distribution of \$711,148.16, rather than 50% of the remaining total, based on expenditures that they claim were made for the common benefit of the parties. The court finds that this motion is wholly without merit and denies it.

First, plaintiffs argue that they contributed \$517,387.37 in mortgage payments for the property, over a period of more than 30 years (April 1993 to October 2023), as well as \$23,439.32 for “renovations, repairs, and maintenance,” \$2,586.52 for home insurance, \$27,036.92 for property taxes, and \$32,666.80 for a loan payment. What they fail to disclose, anywhere in their opening brief, is that they were the exclusive occupants of the property during this period. As defendants point out in their opposition brief, “Plaintiffs’ payments were made in exchange for exclusive use of the Property, not as advances on ownership.” (Opposition, p. 6:5-6.) As a consequence, there is zero basis for the court to find that any of these payments were for “the common benefit.” These payments were the equivalent of rent over this thirty-and-a-half-year period, and so the court finds that they were solely for the benefit of plaintiffs.

Second, plaintiffs argue that they are entitled to attorney’s fees of \$25,050.23 in connection with this partition action, but the court finds that these expenditures were also not for the common benefit. As defendants again point out, they were not opposed to a partition and sale of the property; instead, the parties had disagreements over the choice of broker and the distribution of proceeds between them. (Opposition, pp. 3:12-4:22; 7:22-9:5.) The court takes judicial notice of the fact that the contested filings in this case consist of: (1) plaintiffs’ demurrer to defendants’ answer, which the court found to be meritless on January 16, 2024; (2) plaintiffs’ ex parte application to confirm the sale, which the court found to be “extremely confusing” on July 16, 2024 and then rendered moot by the parties’ stipulation in August 2024; and (3) the present motion, which the court finds to be equally meritless. None of this can reasonably be deemed to have been advanced by plaintiffs or their counsel for the common benefit.

The motion is DENIED. The court orders that each side receive a 50% share of the remaining proceeds.

- oo0oo -